

Tentative Rulings for September 1, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2502630	TERRA LAGO COMMUNITY ASSOCIATION VS DESERT ACQUISITION GROUP, LLC	MOTION TO SET ASIDE ON COMPLAINT OF TERRA LAGO COMMUNITY ASSOCIATION BY TERRA LAGO COMMUNITY ASSOCIATION

Tentative Ruling: Granted.

Sanctions issued May 1, 2026 as to attorney Michael C. Knighten are vacated and set aside.

Court reviewed attorney Michael C. Knighten declaration of May 22, 2026 and found it is accurate in that while sanctions for the non response to OSC set in March 2026 was warranted there appears to be a discrepancy in the court docket and lack of notice provided for the May 1, 2026 hearing.

Court to provide notice pursuant to CCP 1019.5.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2502818	MEDINA VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY GILBERT P. MEDINA

Tentative Ruling: Granted in part.

Granted in reduced, but reasonable amount of \$11,990.00 for attorney fees and costs in the amount of \$1,125.50.

Defendant is ordered to pay attorney fees and costs to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Gilbert P. Medina ("Plaintiff") brings this Song-Beverly action against Defendant General Motors, LLC ("Defendant") regarding a 2023 Chevrolet Silverado with transmission and other defects. The complaint, filed 4/15/25, asserts: (1) breach of implied warranty; (2) breach of express warranty; (3) failure to promptly repurchase; and (4) failure to timely commence repairs. The parties settled at mediation on 12/3/25.

Now, Plaintiff seeks an award of \$14,812.50 in fees (23.7 hours at \$625/hour) and \$1,425.50 in costs and expenses. The requested time includes 3 hours of anticipated work related to the fee motion. Plaintiff argues that the rates and hours billed are reasonable.

In opposition, Defendant argues that the requested rate and hours are excessive for a case that resolved quickly. Defendant asks the court to reduce counsel's rate to \$550/hour, strike 12.3 hours as excessive, clerical, templated, or anticipated.

Defendant also asks to reduce costs by \$608.60. Defendant asserts that the reasonable award is no more than \$6,270 in fees and \$816.90 in costs.

In reply, Plaintiff argues that the \$625 rate reflects counsel's experience, contingent-fee risk, and prevailing market rates. Plaintiff further asserts that the challenged time was reasonable. Plaintiff concedes that only 50% of the \$600 mediation charge should be allocated to this matter (with a reduction of \$300). Plaintiff updates the request to \$14,812.50 in fees and \$1,125.40 in costs.

Song Beverly Attorney Fees

The parties do not dispute that Plaintiff is the prevailing party under this Song-Beverly Act case. This Act contains a mandatory fee-shifting provision. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer *shall* be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) Thus, Plaintiff is entitled to fees under this provision. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Plaintiff seeks an hourly rate of \$625 for Larry Hoddick. (Hoddick Decl., ¶ 11.) A reasonable hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff supports the requested rate with counsel's declaration concerning his experience, other attorneys' rates, and fee awards on other cases. (Hoddick Decl.,

¶¶ 9-15.) Defendant proposes a \$550 hourly rate. Based on the court's experience and the evidence submitted, the requested \$625 rate appears somewhat excessive for this matter. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [court may rely on its own experience in determining reasonable rates and hours].) Specifically, this court has previously granted a reasonable hourly rate of attorney Hoddick at \$550. This rate reasonably accounts for counsel's experience and specialized practice.

Defendant also challenges several billing entries as templated, excessive, administrative/clerical, or duplicative. These entries concern the time for Plaintiff's initial consultation and review of repair documents, preparation of the complaint and initial disclosures, review of Defendant's disclosures, and drafting of the case management statement. These tasks required case-specific attorney judgment. The fact that counsel used templates does not establish that the work was unreasonable.
DECLINED.

Plaintiff's billing records, however, include 3.4 hours (\$2,125.00) of anticipated work related to this fee motion and hearing. Civ. Code §1794(d) allows for *actual* time expended. Although Plaintiff filed a reply, counsel did not submit supplemental declaration documenting the actual time spent on it. The court will allow 1 hour for the reply and 0.5 hour for hearing preparation and appearance, but disallow the remaining anticipated time.

In sum, the court allows 20.3 hours of actual attorney time, plus 1.5 hours for the reply/hearing, for a total of 21.8 hours. At the adjusted rate of \$550 per hour, the resulting lodestar is \$11,990.

Costs

Civ. Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of "costs and expenses" to include items excluded under CCP §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiff did *not* file a cost memorandum, but identified \$1,425.50 in claimed costs. (Hoddick Decl., ¶ 6.) Defendant challenges that the \$600 mediation charge covered a 1.5-hour mediation session involved *two* separate cases. In his reply, Plaintiff concedes that only half (or \$300) of the mediation charge should be allocated to this action, and half will go to the other case mediated the same day. \$1,425.50 less the conceded \$300 reduction equals \$1,125.50. These costs appear reasonably incurred.

As such, the court awards \$1,125.50 in costs.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504342	CISNEROS VS FIDELITY NATIONAL TITLE COMPANY	MOTION TO STRIKE COMPLAINT OF CARLOS S. CISNEROS BY FIDELITY NATIONAL TITLE COMPANY

Tentative Ruling: Sustained.

No opposition filed.

Operative complaint was filed by Plaintiff on July 7, 2025 seeking cancellation of Trustee sale and deed of subject property on December 11, 2024 along with quieting title.

In the instant motion, Defendant Fidelity National Title Company demurrers to all causes of action in the operative complaint.

The court's review of the complaint and moving papers leads the court to conclude that Plaintiff has not plead any actionable cause as to the *instant* defendant, Fidelity National Title Company who was the foreclosure trustee without any further involvement such as the mortgage holder and/or authorized agent for such.

Unless Plaintiff can specify how leave to amend can cure this deficiency, the court must sustain without leave to amend.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504342	CISNEROS VS FIDELITY NATIONAL TITLE COMPANY	DEMURRER ON COMPLAINT OF CARLOS S. CISNEROS BY FIDELITY NATIONAL TITLE COMPANY

Tentative Ruling: Moot as result of court ruling on accompanying demurrer.

Moving party to provide notice pursuant to CCP 1019.5.